

HOUSE No. 4334

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1127) of Marjorie C. Decker, Susannah M. Whipps and others relative to insurance coverage and access to nurse-midwifery services, reports recommending that the accompanying bill (House, No. 4334) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase access to nurse-midwifery services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 35. The commission shall provide to any active or retired employee of the
4 commonwealth insured under the group insurance commission coverage for services rendered by
5 a certified nurse midwife designated to engage in the practice of nurse-midwifery by the board of
6 registration in nursing pursuant to section 80C of chapter 112, and the payment rate for a service
7 provided by a certified nurse-midwife that is within the scope of the certified nurse-midwife's
8 authorization to practice shall be equal to the payment rate for the same service if performed by a
9 physician.

10 SECTION 2. Section 47E of Chapter 175 of the General Laws, as appearing in the 2022
11 Official Edition, is hereby amended by adding the following sentences:- The reimbursement for
12 the services provided pursuant to this section shall be in the same amount as the reimbursement
13 paid under the policy to a licensed physician performing the service in the area served. An

insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.

SECTION 3. Chapter 176A of the General Laws is hereby amended by inserting after section 8DDD. the following section:-

Section 8EEE. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed in the commonwealth shall provide as a benefit to all individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the commonwealth for services rendered by a certified nurse midwife designated to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112, and the payment rate for a service provided by a certified nurse-midwife that is within the scope of the certified nurse-midwife's authorization to practice shall be equal to the payment rate for the same service if performed by a physician.

SECTION 4. Section 4G of Chapter 176B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following sentences:- The reimbursement for the services provided pursuant to this section shall be in the same amount as the reimbursement paid under the policy to a licensed physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.

SECTION 5. Section 4 of Chapter 176G of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

35 (g) services rendered by a certified nurse midwife designated to engage in the practice of
36 nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112,
37 subject to the terms of a negotiated agreement between the health maintenance organization and
38 the provider of health care services. The reimbursement for the services provided shall be in the
39 same amount as the reimbursement paid under the policy to a licensed physician performing the
40 service in the area served. An insurer may not reduce the reimbursement paid to a licensed
41 physician in order to comply with this section.